

HOUSE BILL 1428

By Martin B

AN ACT to amend Chapter 7 of the Private Acts of 1999; as amended by Chapter 24 of the Private Acts of 2009; Chapter 37 of the Private Acts of 2014; and any other acts amendatory thereto, relative to the City of Milan.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Chapter 7 of the Private Acts of 1999, as amended by Chapter 37 of the Private Acts of 2014, and any other acts amendatory thereto, is amended in Section 12 by deleting the second paragraph, which reads:

The board of Mayor and Aldermen shall, within a period of thirty (30) days from the date on which a vacancy was declared, appoint a qualified person to fill the vacancy for the unexpired term of the vacated seat.

and by substituting:

If there is a vacancy declared for an office of Alderman, the board of Mayor and Aldermen shall within sixty (60) days thereafter appoint a qualified person to serve the unexpired term of such office.

SECTION 2. Chapter 7 of the Private Acts of 1999, and any other acts amendatory thereto, is amended in Section 16 by deleting subdivision 3 and substituting:

3. May make temporary appointments to the offices of City Attorney or City Judge in case of sickness, absence, or other temporary disability, which shall be effective until confirmed or rejected by the Board.

SECTION 3. Chapter 7 of the Private Acts of 1999, and any other acts amendatory thereto, is amended in Section 16 by deleting subdivision 7 and substituting:

7. Shall execute all contracts approved by the Board; otherwise, the Mayor shall have authority to execute any contract that does not exceed ten thousand dollars

(\$10,000), and does not by its terms require approval of the Board, provided any expenditures pursuant to such contract are within the budget.

SECTION 4. Chapter 7 of the Private Acts of 1999, as amended by Chapter 24 of the Private Acts of 2009, and any other acts amendatory thereto, is amended in Section 16, subdivision 8, by deleting the language "and City Recorder,".

SECTION 5. Chapter 7 of the Private Acts of 1999, and any other acts amendatory thereto, is amended by deleting Section 22.

SECTION 6. Chapter 7 of the Private Acts of 1999, and any other acts amendatory thereto, is amended in Section 25 by deleting the word "his" and by substituting instead the word "this" in the first sentence.

SECTION 7. Chapter 7 of the Private Acts of 1999, and any other acts amendatory thereto, is amended in Section 33 by deleting the section and substituting:

Sale of Property. The Mayor may sell surplus property of the City; provided, however, the sale of surplus property with a fair market value of more than two thousand five hundred dollars (\$2,500), or the sale of any real property, shall be subject to Board approval.

SECTION 8. Chapter 7 of the Private Acts of 1999, and any other acts amendatory thereto, is amended in Section 40 by deleting the section and substituting:

Disbursements. Disbursements shall be made only as authorized by the Mayor, City Treasurer, Vice-Mayor, or the designee of such officers.

SECTION 9. Nothing in this act shall be construed to remove any incumbent from office or abridge the term of any incumbent prior to the end of the term for which such elected official was selected, as prescribed in Article XI, Section 9 of the Constitution of the State of Tennessee.

SECTION 10. This act shall have no effect unless it is approved by a two-thirds (2/3) vote of the legislative body of the City of Milan. Its approval or nonapproval shall be proclaimed by the presiding officer of the legislative body and certified to the secretary of state.

SECTION 11. For the purpose of approving or rejecting the provisions of this act, it shall be effective upon becoming law, the public welfare requiring it. For all other purposes, it shall become effective as provided in the preceding Section 10.